IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-101

CP (CAA) No.- 67/230/232/ND/2022 (2nd Motion)

IN THE MATTER OF:

Venus Management Consultants Pvt. Ltd. With Craford Securities Pvt. Ltd.

....Applicant

SECTION

U/s 230-232

Order delivered on 08.06.2022

CORAM:
SHRI ABNI RANJAN KUMAR SINHA,
HON'BLE MEMBER (JUDICIAL)

SHRI HEMANT KUMAR SARANGI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Iswar Mohapatra, Adv.

ORDER

1. This Company Petition jointly filed by the Applicant Companies is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter, referred to as the **"SCHEME"**) contemplated between the Applicants, which will take effect from the Appointed Date of 01.04.2021.

2. The Petitioner Companies had filed joint petition before this Tribunal vide CA(CAA) No.- 22/230/232/ND/2022 seeking dispensation of convening meeting of Shareholders, Secured Creditors & Unsecured Creditors for approval of Scheme of Amalgamation.

3. This Tribunal has vide its order dated 30.05.2022 has dispensed with the convening and holding of the meeting of Shareholders, Secured Creditors & Unsecured Creditors for all Transferor Companies and Transferee Companies (Petitioner Companies).

4. The prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230-232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows:

(i) **The Petition stands Admitted.**

(ii) **The date of hearing** of the Petition filed by the Applicant Companies for approval of the Scheme **is fixed for 12.09.2022.**

(iii) **Notice of the hearing shall be published in the newspapers,** namely, "Business Standard" in English and "Business Standard" in Hindi/ vernacular language, circulated within the area where the registered office is situated or respondent resides or carrying on their business in not less than 40 days before the aforesaid date fixed for hearing.

5. In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely:

(a) Central Government through Regional Director (Northern region), CGO Complex, Lodhi Road, New Delhi;

(b) Registrar of Companies, NCT of Delhi & Haryana, 4th Floor IFCI Tower, 61, Nehru Place, New Delhi-110019;

(c) Official Liquidator, 8th Floor, Lok Nayak Bhawan, Khan Market, Sujan Singh Park, New Delhi- 110003;

(d) The Jurisdictional Income Tax Authorities;

(e) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

6. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an affidavit of service in relation to the Newspaper Publication affected as well as service of Notices on the Authorities, as specified above including the Sectoral Regulators, if any.

7. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which, it will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other

conditions, as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder being satisfied. List the matter on **12.09.2022.**

-Sd/-

(HEMANT KUMAR SARANGI)
MEMBER (T)

-Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Md Saddam